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Tentative Ruling

Re: **Hubbard v. Agemark Corporation**
Superior Court Case No. 25CECG05886

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Defendants to Compel Arbitration, or in the alternative, to Stay the Proceedings

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Tentative Ruling:

To stay the matter pending resolution of *Leeper v. Shipt, Inc.* (2025) 566 P.3d 234 in the California Supreme Court.

A status conference is to be held Thursday, December 3, 2026 at 3:30 p.m. in Department 501. Defendants are to file a status update as to *Leeper v. Shipt., Inc.* no later than November 16, 2026.

Explanation:

A trial court has discretion to stay an action in the interests of justice and judicial economy. (Code Civ. Proc., § 128; *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141; *Landis v. North American Co.* (1936) 299 U.S. 248, 254.) A stay is appropriate where cases which are deemed dispositive to pivotal issues are pending resolution in the California Supreme Court. (*Blue Chip Properties v. Permanent Rent Control Bd.* (1985) 170 Cal.App.3d 648, 655.)

Here, the issue of whether a Private Attorneys General Act ("PAGA") necessarily includes individual and non-individual claims and whether a plaintiff may bring only a representative PAGA claim is currently pending in the California Supreme Court. (*Leeper v. Shipt*, *supra*, 566 P.3d 234; *Rodriguez v. Packers Sanitation Services Ltd.* (2025) 567 P.3d 1272.) This will address a split in authority. The decision in *Leeper v. Shipt, Inc.* will be dispositive to the issue of compelling arbitration here. As such, the court stays the proceedings pending resolution of *Leeper v. Shipt, Inc.* in the California Supreme Court.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26
(Judge's initials) (Date)

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Tentative Ruling

Re: ***DeLeon v. Fresno Community Hospital and Medical Center, et al.***
Superior Court Case No. 24CECG00946

Hearing Date: August 4, 2026 (Dept. 501)

Motion: by Defendant Kathleen Laning Piro, M.D. for Summary Judgment

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant defendant Kathleen Laning Piro, M.D.'s motion for summary judgment as to the entire complaint. (Code Civ. Proc. § 437c.) Defendant shall submit a judgment consistent with the terms of this order within 10 days of service of the order.

Explanation:

Plaintiff alleges in this medical malpractice action that defendant Kathleen Laning Piro, M.D. was negligent in the care and treatment of plaintiff with regard to the obstetrics, anesthesia, and general pre and post-partum care rendered to decedent Kyana Hickenbottom between November 21, 2022 and December 7, 2022. (FAC, MM-1, ¶¶ 2-3.) Dr. Piro now moves for summary judgment.

As the moving party, Defendant bears the initial burden of proof to show that plaintiff cannot establish one or more elements of her cause of action or to show that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) Only after the moving party has carried this burden of proof does the burden of proof shift to the other party to show that a triable issue of one or more material facts exists – and this must be shown via specific facts and not mere allegations. (*Id.*)

Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim (e.g. that a medical defendant's treatment fell within the applicable standard of care), the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

In determining whether any triable issues of material fact exist, the court must strictly construe the moving papers and liberally construe the declarations of the party opposing summary judgment. Any doubts as to whether a triable issue of material fact

